



Department for Levelling Up,
Housing & Communities

Sent by email

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**Department for Levelling Up,
Housing and Communities**

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Building Safety Fund: Update on Developer Remediation Contract

Re: Alamaro, Becquerel Court, Da Vinci, Faraday Lodge, Farnsworth, Holly Court, Maurer Court, New Becquerel Court, Newton Lodge and Metcalfe Court

(London_645, London_652, London_636, London_690, London_691, London_709,
London_724, B1_NEW_Gree_9, London_618, London_606)

Dear Applicant,

On 30th January 2023, the Secretary of State announced a new agreement with major developers under which they agreed to pay for life-critical fire safety works in buildings they had a role in developing or refurbishing over the last 30 years (the Contract). There is more information on the Contract available here:

<https://www.gov.uk/government/publications/developer-remediation-contract>

Further to the Department's previous letter, I am pleased to inform you that in the case of **Alamaro, Becquerel Court, Da Vinci, Faraday Lodge, Farnsworth, Holly Court, Maurer Court, New Becquerel Court, Newton Lodge and Metcalfe Court**, the original developer of the building, **Countryside/Taylor Wimpey**, has agreed to manage and fund work on your building.

Under the Contract, **Countryside/Taylor Wimpey** has committed to fund all necessary remediation and/or mitigation works to address life-critical fire safety defects, as recommended by a Fire Risk Appraisal of External Walls carried out according to PAS9980 guidance and other industry standards relevant to ensuring the building meets a life-critical safety standard. This will include them paying for life-critical fire safety works on your building which are not eligible for the Building Safety Fund (e.g., non-cladding defects), and therefore leaseholders will not have to meet the costs of these works. They have also committed to acting as quickly as reasonably possible to take forward works, and to ensuring that you (as the responsible entity for the building) have access to sufficient advice to agree a plan for the works with them.

As the developer has now agreed to fund all life-critical fire safety works necessary for your building, the Department does not expect to award any further funding for your project from the Building Safety Fund (BSF). There is no need for you to submit further information or evidence to your delivery partner as part of your application. You should now work together with **Countryside/Taylor Wimpey** to progress works on your building as quickly as possible.

The developer should already be in touch with you regarding the project, and you must work closely with them to share information on the project and agree a plan for the works. If they have not yet made contact, please raise this with your delivery partner caseworker. As responsibility for funding your project transitions from DLUHC to the developer, your caseworker will continue to act as a point of contact with the Department, and you should raise any questions or concerns with them. This includes if you believe the developer is failing to meet their commitments under the Contract.

You should inform leaseholders and residents about this update in addition to continuing to ensure that they are kept informed of, and provided with regular updates on, the progress of remediation works.

As you have completed a tender for the works, we are expecting your developer to meet the current expected completion timelines for the works.

We are expecting developers to also refund previous awards of pre-tender support. If you have received pre-tender support, the Department will write to you with more details on how it intends to process developer reimbursements.

Lastly, I would like to thank you for your continued engagement. The commitments developers have made are a major step towards ensuring that works to ensure residents' safety are carried out quickly, and that the industry responsible absorbs the costs of these works, rather than taxpayers and leaseholders.

Yours faithfully,

Paul Landsborough
Deputy Director, Building Remediation